

1.

CASE #	CASE NAME	HEARING NAME
CVME2504256	WELLS FARGO BANK, NA VS BAIR	MOTION TO DEEM MATTER ADMITTED

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on 03/27/2026 are deemed admitted. Court to sign the proposed order.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507370	JPMORGAN CHASE BANK N.A. VS PERZABAL	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to GONZALO PERZABAL submitted in the above-entitled action be set aside and that Plaintiff JPMorgan Chase Bank, N.A., shall have and recover from Defendant GONZALO PERZABAL the principal sum of \$6,336.00 plus court costs in the sum of \$0.00 for a total judgment of \$6,336.00. Court to sign the proposed order and the proposed judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511050	CAVALRY SPV I, LLC VS DANAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant Mark Danan, in pro per
Responding party: Plaintiff Cavalry SPV I, LLC

Motion filed: 5/15/25, served by certified mail on 5/16/26
Opposition filed: 6/18/26, served by overnight mail on 6/18/26
Reply filed: 6/22/26, served by certified mail on 6/24/26

CCP §1281 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (CCP §1281.2.) “A petition to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.”” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 411 (“*Rosenthal*”) *quoting Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and

proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 *citing Rosenthal, supra*, 14 Cal.4th at p. 413.)

In determining whether or not Danan waived his right to arbitrate, the court considered that the parties specifically agreed by contract that “[a]rbitration may be requested any time, even where there is a pending lawsuit, unless a trial has begun or a final judgment entered. Neither you nor we waive the right to arbitrate by filing or serving a complaint, answer, counterclaim, motion, or discovery in a court lawsuit. To choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by submitting the required AAA forms and requisite filing fees to the AAA.” In light of this contractual agreement, the court finds that Defendant has not waived his right to arbitration and **GRANTS** the motion to compel Calvary to arbitrate its claims. Plaintiff must initiate the arbitration proceedings with AAA, including paying any of the related filing fees required, within 30 days of this court’s order. Just as the contract provides that Danan can move for arbitration at any time, it also provides that since this action is for the collection of a debt, he is responsible to pay his share of the filing fees.

In addition, the court stays these proceedings pending Danan’s timely election to pursue arbitration of this dispute pursuant to the terms of this court’s order.

4.

CASE #	CASE NAME	HEARING NAME
CVME2604114	EVERGREEN BANK GROUP VS PITTMAN	HEARING ON NOTICE OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Application unopposed.

Application **GRANTED**. Court to sign the Order for Writ of Possession.